



Ordinary Meeting

BUSINESS PAPER

Tuesday, 11 June 2019 at 7:00 pm

Griffith City Council Chambers
1 Benerembah Street, GRIFFITH NSW 2680
Phone: (02) 6962 8100 Fax (02) 6962 7161
Web: www.griffith.nsw.gov.au Email: admin@griffith.nsw.gov.au



COUNCILLORS

John Dal Broi (Mayor)
Doug Curran (Deputy Mayor)
Glen Andreadza
Simon Croce
Deb Longhurst
Eddy Mardon
Rina Mercuri
Anne Napoli
Mike Neville
Brian Simpson
Christine Stead
Dino Zappacosta

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MEMBERS OF THE PUBLIC CAN ADDRESS COUNCIL IN THE FOLLOWING WAYS

Council generally meets every second and fourth Tuesday of the month at 7.00 pm in the Council Chambers.

Addressing the Council on Business Paper matters

If there is a matter on the agenda you would like to discuss or address, you can contact Council prior to the Ordinary Meeting of Council and request permission to address Council in relation to the matter. Notice of this must be given by 12.00 noon of the day of the meeting. Any requests for detailed information regarding an item on the Council Business Paper must be submitted by 12.00 noon of the day of the meeting.

Notice of Motion via Councillor

You are able to lobby a Councillor to raise a Notice of Motion to have a matter considered by the Council at a future meeting.

Petition

A petition can be presented to the Council through a Councillor. If you would like to present a petition to an Ordinary Meeting of Council, please contact one of the Councillors to arrange.

Customer Request Management system

The Customer Request Management system (CRM) manages the processing of customer requests. Customer requests can be then easily responded to, allocated to responsible officers and checked. The system will automatically escalate requests that have not been actioned. To log a request, please contact Council's Customer Service Team on 02 6962 8100.

Direct correspondence to the General Manager

You can write directly to the General Manager about your issue or concern via letter or email. You can contact the General Manager at admin@griffith.nsw.gov.au or to: The General Manager, PO Box 485 Griffith NSW 2680.

REPORT AUTHORS AND AREAS OF RESPONSIBILITY

Senior Management Team

General Manager
Director Economic & Organisational Development
Public Officer/Right to Information Officer
Director Business, Cultural & Financial Services
Director Infrastructure and Operations
Director Sustainable Development
Director Utilities

Brett Stonestreet
Shireen Donaldson
Shireen Donaldson
Max Turner
Phil King
Phil Harding
Graham Gordon

Economic & Organisational Development

Governance Manager
Tourism Manager
HR & Risk Manager
Workforce Planning Manager
IT Manager
Information Manager
Information Management Administrator
Community Development Coordinator

Leanne Austin
Mirella Guidolin
Kylie Carusi
Nick DeMartin
Katherine Elliott
Joanne Savage
Wendy Vaccari
Peta Dummett

Business, Cultural & Financial Services

Finance Manager
Asset Management Coordinator
Library Manager
Griffith Regional Arts and Museum Manager
Leisure Services Manager

Vanessa Edwards
Andrew Keith
Shiron Kirkman
Raina Savage
Alan Anderson

Infrastructure & Operations

Works Manager - Maintenance
Works Manager - Construction
Parks & Gardens Manager
Airport Coordinator
Fleet & Depot Manager

Manjit Chugha
Shree Shrestha
Peter Craig
Bob Campbell
Steve Croxon

Sustainable Development

Planning & Environment Manager
Coordinator Landuse Planning and Compliance
Senior Development Assessment Planner
Principal Planner
Project Planner
Environment, Health & Sustainability Coordinator
Corporate Property Officer
Building Certification Coordinator
Compliance Coordinator

Carel Potgieter
Steven Parisotto
Linden Favero
Pete Badenhorst
Nathan Beer
Fiona de Wit
Daphne Bruce
Anthea Crack
Anthony Napoli

Utilities

Engineering Design & Approvals Manager
Waste Operations Manager
Water & Wastewater Manager

Joe Rizzo
John Roser
Durgananda Chaudhary

**ORDINARY MEETING OF GRIFFITH CITY COUNCIL
TO BE HELD IN GRIFFITH CITY COUNCIL CHAMBERS ON
TUESDAY, 11 JUNE 2019 AT 7:00 PM**

MEETING NOTICE

Notice is hereby given that an Ordinary Meeting of Council will be held in the Griffith City Council Chambers, 1 Benerembah Street, GRIFFITH NSW 2680 on **Tuesday, 11 June 2019**.

Persons in the gallery are advised that the proceedings of the meeting will be recorded for the purpose of ensuring the accuracy of the Minutes.

Griffith City Council now supplies broadcast and on-demand audio of Ordinary Meetings of Council which may be broadcast via local media and an audio version of the Council Meeting is available on the Council website which can be listened to on a mobile device or PC.

Persons attending a Council meeting consent to the possibility that their voice may be broadcast to the public. Audio of Council Meetings cannot be copied, recorded, reproduced, reused or transmitted without the prior written consent of the General Manager.

Under the Local Government Act 1993, no other recording is permitted without the authority of the Council or Committee. Recording includes a video camera and any electronic device capable of recording speech.

Members of the public may address Council in relation to the items listed in this Agenda by contacting Council on (02) 6962 8100 by 12.00 noon on the day of the meeting.

The agenda for the meeting is:

- 1 Council Prayer and Acknowledgment of Country
- 2 Apologies and Requests for Leave of Absence
- 3 Confirmation of Minutes
- 4 Business Arising
- 5 Declarations of Interest
- 6 Presentations
- 7 Mayoral Minutes
- 8 General Manager's Report

CL01 p14 Adoption of Delivery Program 2017/18 - 2020/21 incorporating the Operational Plan (Budget) 2019/20 and the Long Term Financial Plan

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|------|-----|---|
| CL02 | p16 | Making of Rates and Charges for the Period 1 July 2019 to 30 June 2020 |
| CL03 | p27 | Transfer of licence agreements from Brian and Pamela Young and The Owners Strata Plan 79997 to Matthew and Lynnette Kenny at 124-126 Wakaden Street, Griffith |
| CL04 | p33 | Griffith Regional Sports Precinct Project |
- 9 Information Reports
 - 10 Adoption of Committee Minutes

p38	Minutes of the Communities Committee Meeting held on 21 May 2019
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 - 11 Business with Notice – Rescission Motions
 - 12 Business with Notice – Other Motions
 - 13 Councillor Question Time
 - 14 Outstanding Action Report

p45	Outstanding Action Report
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 - 15 Matters to be dealt with by Closed Council
- | | |
|------|---|
| CC01 | Tender 17-18/19 Construction of Stormwater Drainage & Detention Basins |
| | <ul style="list-style-type: none"> - commercial information of a confidential nature that would, if disclosed: <ol style="list-style-type: none"> (i) prejudice the commercial position of the person who supplied it, or (ii) confer a commercial advantage on a competitor of the council, or (iii) reveal a trade secret 10A(2) (d) |

Brett Stonestreet

GENERAL MANAGER

**ORDINARY MEETING OF GRIFFITH CITY COUNCIL
HELD IN GRIFFITH CITY COUNCIL CHAMBERS ON
TUESDAY, 28 MAY 2019 COMMENCING AT 7:01 PM**

PRESENT

The Mayor, John Dal Broi in the Chair; Councillors, Glen Andreazza, Simon Croce, Doug Curran, Deb Longhurst, Eddy Mardon, Mike Neville, Christine Stead and Dino Zappacosta

STAFF

General Manager, Brett Stonestreet, Director Utilities, Graham Gordon, Director Infrastructure & Operations, Phil King, Director Business, Cultural & Financial Services, Max Turner, Director Sustainable Development, Phil Harding and Director Economic & Organisational Development, Shireen Donaldson

MEDIA

Jacinta Dickens, The Area News

1 COUNCIL PRAYER AND ACKNOWLEDGEMENT OF COUNTRY

The Meeting opened with Councillor Eddie Mardon reading the Council prayer and the Acknowledgement of Country.

2 APOLOGIES AND REQUESTS FOR LEAVE OF ABSENCE

19/154

RESOLVED on the motion of Councillors Doug Curran and Deb Longhurst that an apology be received from Councillors Brian Simpson, Anne Napoli and Rina Mercuri and a leave of absence granted.

3 CONFIRMATION OF MINUTES

19/155

RESOLVED on the motion of Councillors Mike Neville and Glen Andreazza that the minutes of the Ordinary Meeting of Council held in Griffith City Council Chambers 1 Benerembah Street, GRIFFITH NSW 2680 on 14 May 2019, having first been circulated amongst all members of Council, be confirmed.

4 BUSINESS ARISING

There were no matters arising.

5 DECLARATIONS OF INTEREST**Pecuniary Interests**

There were no pecuniary interests declared.

Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

Less Than Significant Non-Pecuniary Interests

Councillors making a less than significant non-pecuniary interest declaration may stay in the meeting and participate in the debate and vote on the matter.

Councillor Andreazza

CC04

Reason – Councillor Andreazza has been contacted by a person mentioned within the report.

Councillor Stead

Question Time – Petition

Reason – Councillor Stead resides along the road mentioned in the petition.

6 PRESENTATIONS

Nil

7 MAYORAL MINUTES

Nil

8 GENERAL MANAGER'S REPORT**CL01 DA 39/2019 - CONSTRUCTION AND USE OF A PLACE OF PUBLIC WORSHIP**

19/156

RESOLVED on the motion of Councillors Christine Stead and Glen Andreazza that the meeting suspend standing orders to allow speakers for the Development Application to address Council, the time being 7.05pm.

Mr Martin Ruggeri on behalf of the Applicant addressed Council, the time being 7.05pm.

19/157

RESOLVED on the motion of Councillors Christine Stead and Doug Curran that the meeting resume standing orders, the time being 7.09pm.

19/158

RESOLVED on the motion of Councillors Simon Croce and Mike Neville that:

- (a) Griffith City Council as the consent authority pursuant to section 4.16(1) of the Environmental Planning & Assessment Act 1979 grant consent to Development Application 213/2018 for DA 39/2019(1) Construction and Use of Place of Public Worship including construction of a new building for praying and carpark at Lot 1100 DP 751709 and Lot 2259 DP 1010996, Harward Road Griffith, subject to conditions set out in Attachment (a).
- (b) The application be delegated to the Director Sustainable Development for the preparation and issue of the notice of determination.

In accordance with the Local Government Action (section 375A - Recording of voting on planning matters) Council must record the Councillor's vote in relation to the matter.

For

Against

Councillor John Dal Broi
Councillor Glen Andreazza
Councillor Simon Croce
Councillor Doug Curran
Councillor Deb Longhurst
Councillor Eddy Mardon
Councillor Mike Neville
Councillor Christine Stead
Councillor Dino Zappacosta

The division was declared PASSED by 9 votes to 0.

CL02 DA 54/2019 - DETACHED SHED AT 33 PALLA STREET, GRIFFITH

19/159

RESOLVED on the motion of Councillors Dino Zappacosta and Christine Stead that:

- (a) Pursuant to the provisions of section 4.16(1) of the Environmental Planning & Assessment Act, 1979 Council grant consent to Development Application No. 54/2019 subject to conditions, including those set out in Attachment (b);
- (b) Development Application No. 54/2019 be delegated to the Director Sustainable Development for the preparation and issue of the notice of determination.

In accordance with the Local Government Action (section 375A - Recording of voting on planning matters) Council must record the Councillor's vote in relation to the matter.

For	Against
Councillor John Dal Broi	
Councillor Glen Andreazza	
Councillor Simon Croce	
Councillor Doug Curran	
Councillor Deb Longhurst	
Councillor Eddy Mardon	
Councillor Mike Neville	
Councillor Christine Stead	
Councillor Dino Zappacosta	

The division was declared PASSED by 9 votes to 0.

CL03 THIRD QUARTER PERFORMANCE REPORT 2018/19 - BUDGET REVIEW AND OPERATIONAL PLAN

19/160

RESOLVED on the motion of Councillors Mike Neville and Deb Longhurst that:

- (a) Council note the variations to the 2018/19 original budget for the quarter ended 31 March 2019 as presented in this report.
- (b) The Financial Review and any additional approved variations for the quarter ended 31 March 2019 be adopted.
- (c) Council adopt the 31 March 2019 Operational Plan Review advising the extent to which the Operational Plan Actions (Performance Indicators) have been achieved.

CL04 LOCAL GOVERNMENT REMUNERATION TRIBUNAL 2019/20

19/161

RESOLVED on the motion of Councillors Mike Neville and Glen Andreazza that Council adopt the following fees for the 2019/20 financial year:

- (a) Councillor endorses the Annual Councillor Fee for the 2019/20 financial year at a rate of \$20,280
- (b) Councillor endorses the Annual Mayoral Fee for the 2019/20 financial year at a rate of \$44,250

9 INFORMATION REPORTS

Nil.

10 ADOPTION OF COMMITTEE MINUTES

MINUTES OF THE LAKE WYANGAN & CATCHMENT MANAGEMENT COMMITTEE MEETING HELD ON 7 MAY 2019

19/162

RESOLVED on the motion of Councillors Doug Curran and Glen Andreazza that the recommendations as detailed in the Minutes of the Lake Wyangan & Catchment Management Committee meeting held on 7 May 2019 be adopted.

MINUTES OF THE TRAFFIC COMMITTEE MEETING HELD ON 14 MAY 2019

19/163

RESOLVED on the motion of Councillors Doug Curran and Christine Stead that the recommendations as detailed in the Minutes of the Traffic Committee meeting held on 14 May 2019 be adopted.

11 BUSINESS WITH NOTICE – RESCISSION MOTIONS

Nil.

12 BUSINESS WITH NOTICE – OTHER MOTIONS

Nil.

13 COUNCILLOR QUESTION TIME

Councillor Neville asked the following question:

With the appointment of local MP Sussan Ley to the Environment Portfolio, could Council approach Ms Ley’s office to set up a meeting to discuss water issues that have a direct impact on the community and business in Griffith?

The General Manager, Mr Brett Stonestreet advised that it would be most appropriate to extend an invitation to Hon. Sussan Ley, with the Mayor stating he had contacted Minister Ley to congratulate her on her appointment and advised he would extend an invitation to Minister Ley to attend an upcoming Council Meeting or Workshop.

Councillor Croce Tabled a Petition in relation to Scott Road and Kalinda Road, Lake Wyangan.

The Mayor accepted the petition.

14 OUTSTANDING ACTION REPORT

OUTSTANDING ACTION REPORT - COUNCIL MEETING - 28 MAY 2019

19/164

RESOLVED on the motion of Councillors Mike Neville and Glen Andreazza that the report be noted.

15 MATTERS TO BE DEALT WITH BY CLOSED COUNCIL

In accordance with the Local Government Act 1993 and the Local Government (General) Regulation 2005, in the opinion of the General Manager, the following business is of a kind as referred to in Section 10A(2) of the Act, and should be dealt with in a part of the meeting closed to the media and public.

Set out below is Section 10A(2) of the Local Government Act 1993 in relation to matters which can be dealt with in the closed part of a meeting.

The matters and information are the following:

- (a) personnel matters concerning particular individuals (other than councillors)**
- (b) the personal hardship of any resident or ratepayer**
- (c) information that would, if disclosed, confer a commercial advantage on a person with whom the council is conducting (or proposes to conduct) business**
- (d) commercial information of a confidential nature that would, if disclosed:**
 - (i) prejudice the commercial position of the person who supplied it, or**
 - (ii) confer a commercial advantage on a competitor of the council, or**
 - (iii) reveal a trade secret**
- (e) information that would, if disclosed, prejudice the maintenance of law**
- (f) matters affecting the security of the council, councillors, council staff or council property**
- (g) advice concerning litigation, or advice that would otherwise be privileged from production in legal proceedings on the grounds of legal professional privilege**
- (h) information concerning the nature and location of a place or an item of Aboriginal significance on community land**
- (i) alleged contraventions of any code of conduct requirements applicable under section 440 of the Local Government Act 1993.**

19/165

RESOLVED on the motion of Councillors Glen Andreazza and Christine Stead that:

- (a) Council resolve to go into closed council to consider business identified.**
- (b) Pursuant to section 10A(1)-(3) of the Local Government Act 1993, the media and public be excluded from the meeting on the basis that the business to be considered is classified confidential under the provision of section [10A(2)] as outlined above.**
- (c) The correspondence and reports relevant to the subject business be withheld from access to the media and public as required by section 11(2) of the Local Government Act 1993.**

Council resolved that members of the press and public be excluded from the meeting during consideration of the items listed below, and that discussion of the report in open Council would be contrary to the public interest.

CCMM01 LEGAL PROCEEDINGS - LAND AND ENVIRONMENT COURT

Reason: Legal Proceedings 10A(2)(g)

CC01 TENDER 1-16/17 - EXTENSION TO CONTRACT - SPRAYED BITUMINOUS SURFACING

Reason: Commercial Advantage 10A(2)(d)

CC02 TENDER 27-18/19 - UPGRADE AND REFURBISHMENT TO THE GRIFFITH REGIONAL THEATRE EVALUATION REPORT

Reason: Council Business 10A(2)(c) and Commercial Advantage 10A(2)(d)

CC03 TENDER 28-18/19 - PROVISION OF CLEANING SERVICES

Reason: Commercial Advantage 10A(2)(d)

CC04 ILLEGAL EARTHWORKS

Reason: Legal Proceedings 10A(2)(g)

Council closed its meeting at 7.24pm. The public and media left the Chamber.

REVERSION TO OPEN COUNCIL

19/166

RESOLVED on the motion of Councillors Christine Stead and Glen Andreazza that Open Council be resumed.

Open Council resumed at 7.40pm.

Upon resuming open Council the Mayor reported that the following resolutions had been made in Closed Council:

MATTERS DEALT WITH IN CLOSED COUNCIL**CCMM01 LEGAL PROCEEDINGS - LAND AND ENVIRONMENT COURT**

19/167

RESOLVED on the motion of Councillors Dino Zappacosta and Simon Croce that Council authorise the General Manager to instruct Council's Lawyers to progress the matter in accordance with the preliminary instructions as detailed in this Mayoral Minute.

CC01 TENDER 1-16/17 - EXTENSION TO CONTRACT - SPRAYED BITUMINOUS SURFACING

19/168

RESOLVED on the motion of Councillors Doug Curran and Mike Neville that Council offer Downer EDI Works an extension to the current contract (Tender 1-16/17) for a further 12 months from 13 October 2019 in accordance with the relevant annual CPI movements and bitumen rise and fall clauses in the tender documentation.

CC02 TENDER 27-18/19 - UPGRADE AND REFURBISHMENT TO THE GRIFFITH REGIONAL THEATRE EVALUATION REPORT

19/169

RESOLVED on the motion of Councillors Mike Neville and Christine Stead that:

- (a) Council reject all tenders and proceed to negotiate directly with the preferred contractor(s) for construction and refurbishment of facilities and amenities at the Griffith Regional Theatre.
- (b) Council authorise an additional budget allocation of \$75,208 to bring the total Project budget to \$1.3M so as to allow the full scope of the outdoor performance area to be delivered.

CC03 TENDER 28-18/19 - PROVISION OF CLEANING SERVICES

19/170

RESOLVED on the motion of Councillors Mike Neville and Eddy Mardon that Griffith City Council award the Cleaning Services Contract Number 28–18/19 to S & K Panarello Pty Ltd trading as Presto Cleaning Co. of Griffith NSW, subject to the following conditions:

- (a) Contract Period of five (5) years, commencing 1 June 2019, expiring 31 May 2024.
- (b) Council to conduct annual reviews of service requirements, performance and pricing.

CC04 ILLEGAL EARTHWORKS

19/171

RESOLVED on the motion of Councillors Mike Neville and Deb Longhurst that Council proceed with legal action as described in this report.

There being no further business the meeting terminated at 7.43pm.

Confirmed:

CHAIRPERSON

CLAUSE **CL01****TITLE** **Adoption of Delivery Program 2017/18 - 2020/21 incorporating the Operational Plan (Budget) 2019/20 and the Long Term Financial Plan****FROM** **Shireen Donaldson, Director Economic & Organisational Development****TRIM REF** **19/16883**

SUMMARY

At the Ordinary Meeting of Council held 23 April 2019 it was resolved that the draft Delivery Program 2017/18 - 2020/21 incorporating the Operational Plan (Budget) 2019/20 and the draft Long Term Financial Plan be placed on public exhibition. The public notification period concluded on Friday, 24 May 2019. Two public forums regarding these draft documents were held at the Griffith City Library on Thursday, 9 May and Wednesday, 15 May 2019. Submissions received within the public exhibition period are attached to this report for Council's consideration.

RECOMMENDATION

Council adopt the Delivery Program 2017/18–2020/21 incorporating the Operational Plan (Budget) 2019/20 and the Long Term Financial Plan, including approved amendments from submissions listed in Attachment (c) to this report.

REPORT

The Office of Local Government has implemented the Integrated Planning and Reporting (IP&R) framework with the objective of improving the accountability and delivery of services to the community by councils. Under the IP&R guidelines Council is required to prepare the following documents:

- Community Strategic Plan
- Delivery Program and Operational Plan
- Resourcing Strategy consisting of Long Term Financial Plan, Workforce Plan and Asset Management Strategy.

Council, at its Ordinary Meeting held 23, April 2019, resolved to endorse the draft Delivery Program 2017/18–2020/21 incorporating the Operational Plan (Budget) 2019/20 and draft Long Term Financial Plan and place these documents on display for 28 days. The public notification period ended 24 May 2019.

Five external public submissions were received and four internal submissions. One external and two internal items identified by Council resolution. The attached table (Attachment c) contains details of the submissions received.

OPTIONS

Adopt the Delivery Program 2017/18–2020/21 incorporating the Operational Plan (Budget) 2019/20 and Long Term Financial Plan subject to any further amendments advised.

POLICY IMPLICATIONS

Not Applicable

FINANCIAL IMPLICATIONS

As per the attached Plans.

LEGAL/STATUTORY IMPLICATIONS

Local councils in NSW are required to undertake their planning and reporting activities in accordance with the Local Government Act 1993 and the Local Government (General) Regulation 2005. The Office of Local Government has issued Guidelines that must be followed by Council when undertaking its integrated planning and reporting requirements. IP&R documents are to be adopted before 30 June 2019.

ENVIRONMENTAL IMPLICATIONS

Not Applicable

COMMUNITY IMPLICATIONS

Not Applicable

LINK TO STRATEGIC PLAN

The documents attached for adoption are linked directly to the strategies and objectives outlined in the Griffith Community Strategic Plan – Guiding Griffith 2040 which was adopted 28 February 2017 and came into effect 1 July 2017.

CONSULTATION

Senior Management Team

Council staff

Community members

Public exhibition period from 26 April 2019 to 24 May 2019 including community workshops held 9 and 15 May 2019.

ATTACHMENTS

- (a) Draft Ten Year Long Term Financial Plan Annual Review - 2019-20) (under separate cover) ➡
- (b) Draft Delivery Program 2017-18 - 2020-21 Incorporating Operational Plan 2019-20 (under separate cover) ➡
- (c) Submissions 2019-20 Budget (under separate cover) ➡
- (d) Community & Development Council of Griffith - Submission (under separate cover) ➡
- (e) Griffith Business Chamber - Submission (under separate cover) ➡

CLAUSE **CL02**

TITLE **Making of Rates and Charges for the Period 1 July 2019 to 30 June 2020**

FROM **Vanessa Edwards, Finance Manager**

TRIM REF **19/27294**

SUMMARY

Following the adoption by the Council of the 2019/2020 Operational Plan, Council is to formally make the ordinary rates and charges for the period 1 July 2019 to 30 June 2020.

RECOMMENDATION

(a) Levying of Ordinary Rates and Charges for 2019/2020 Ordinary Rates.

(i) That Council, having adopted its Operational Plan for the year commencing 1 July 2019 and after giving public notice in accordance with Section 532 of the Local Government Act, 1993 of its draft Operational Plan for the year commencing 1 July 2019 and after considering submissions concerning that Plan in accordance with Section 494 of the Local Government Act, 1993 hereby resolve to make and levy an Ordinary Rate consisting of a base amount percentage (minimum charge) and also an ad valorem rate for the residential, farmland and business categories of all rateable land in the Local Government Area as per the following differential rating mix per category:

- Residential - 35% base amount / 65% ad valorem amount levied**
- Business - 15% base amount / 85% ad valorem amount levied**
- Farmland - 14% base amount / 86% ad valorem amount levied**
- Farmland - Irrigable Intensive - 27% base amount / 73% ad valorem amount levied**

(ii) The percentage and dollar value of the base amount payable by the making and levying of an ordinary rate for the residential, farmland and business categories is calculated to produce the following minimum base amounts of the total ordinary rate levy:

- Residential - 35% base amount / \$377.00 per rateable assessment**
- Business - 15% base amount / \$415.00 per rateable assessment**
- Farmland - 14% base amount / \$397.00 per rateable assessment**
- Farmland - Irrigable Intensive - 27% base amount / \$1,028.00 per rateable assessment**

(iii) An ad valorem amount for the various rating categories, including

residential, farmland and business categories for all rateable land within the City for an ordinary rate commencing 1 July 2019 according to the following amounts;

- **Residential (65% ad valorem rate) resulting in a dollar value of zero point zero zero six eight five zero (\$0.006850) cents in the dollar applied to the land value for all rateable lands within the residential category in the City based upon the land value at a base valuation date of 1 July 2016.**
 - **Business (85% ad valorem rate) resulting in a dollar value of zero point zero zero nine one two two (\$0.009122) cents in the dollar applied to the land value for all rateable lands within the residential category in the City based upon the land value at a base valuation date of 1 July 2016.**
 - **Farmland (86% ad valorem rate) resulting in a dollar value of zero point zero zero eight one one seven (\$0.008117) cents in the dollar applied to the land value for all rateable lands within the farmland category in the City based upon the land value at a base valuation date of 1 July 2016.**
 - **Farmland - Irrigable Intensive (73% ad valorem rate) resulting in a dollar value of zero point zero zero nine two five six (\$0.009256) cents in the dollar applied to the land value for all rateable lands within the farmland (irrigable intensive) category in the City based upon the land value at a base valuation date of 1 July 2016.**
- (b) That Council, having adopted its Operational Plan for the year commencing 1 July 2019 and after giving public notice in accordance with Section 496(A) of the Local Government Act, 1993 and after considering submissions concerning that Plan, hereby resolve to make and levy a charge of \$25 per residential and business assessment and \$12.50 per residential Strata title assessment and \$5 per business Strata assessment in the urban area for the provision of Urban Stormwater Management Services.**
- (c) Waste Management Charges for 2019/2020.**
- (i) That whereas the Council has adopted the Operational Plan for the period commencing 1 July 2019 to 30 June 2020 it hereby resolves to make and levy, in accordance with Section 496 of the Local Government Act, 1993, a charge of three hundred and eleven dollars (\$311.00) for the provision of domestic waste management services for each residence for which the service is available within the City and surrounding villages. Such charge to provide for the removal on a once per week basis of waste contained in one 240 litre mobile garbage bin from each separate occupancy, whether rateable or not.**
 - (ii) That whereas the Council has adopted the Operational Plan for the period commencing 1 July 2019 to 30 June 2020 it hereby resolves to make and levy, in accordance with Section 496 of the Local Government Act, 1993, a**

domestic waste service charge in respect of vacant residential land an annual charge of forty dollars (\$40.00) per assessment.

- (iii) That whereas the Council has adopted the Operational Plan for the period commencing 1 July 2019 to 30 June 2020 it hereby resolves to make and levy, in accordance with Section 496 of the Local Government Act, 1993, a charge of one hundred dollars (\$100.00) for the provision of domestic waste recycling collection services for each residence for which the service is available within the City and surrounding villages. Such charge to provide for the removal on a once per fortnight basis of recyclable waste contained in one 240 litre mobile garbage bin from each separate occupancy, whether rateable or not. For any new assessments for the service, the charge will only become effective upon the commencement of the service and will be charged on a pro-rata basis.**
- (iv) That whereas the Council has adopted the Operational Plan for the period commencing 1 July 2019 to 30 June 2020 it hereby resolves to make and levy, in accordance with Section 501 of the Local Government Act, 1993, a charge of five hundred and forty eight dollars (\$548.00) per requested service for the year commencing 1 July 2019 for the provision of waste management services for each non-residential property for which the service is utilised within the City. Such a charge to provide the removal as requested on a once per week basis of waste contained in one 240 litre mobile garbage bin from each separate occupancy, whether rateable or not.**
- (v) That whereas the Council has adopted the Operational Plan for the period commencing 1 July 2019 to 30 June 2020 it hereby resolves to make and levy, in accordance with Section 501 of the Local Government Act, 1993, a charge of one thousand three hundred and ninety seven dollars (\$1,397.00) per requested service for the year commencing 1 July 2019 for the provision of waste management services for each non-residential property for which the service is utilised within the City. Such charge to provide for the removal as requested on a once per week basis of garbage contained in a 660 litre mobile garbage bin from each occupancy, whether rateable or not.**
- (vi) That whereas the Council has adopted the Operational Plan for the period commencing 1 July 2019 to 30 June 2020 it hereby resolves to make and levy, in accordance with Section 501 of the Local Government Act, 1993, a charge of two thousand three hundred and twelve dollars (\$2,312.00) per requested service for the year commencing 1 July 2019 for the provision of waste management services for each non-residential property for which the service is utilised within the City. Such charge to provide for the removal as requested on a once per week basis of garbage contained in an 1,100 litre mobile garbage bin from each occupancy, whether rateable or not.**
- (vii) That whereas the Council has adopted the Operational Plan for the period commencing 1 July 2019 to 30 June 2020 it hereby resolves to make and levy, in accordance with Section 501 of the Local Government Act, 1993, a charge of two hundred dollars (\$200.00) for the provision of industrial/commercial waste recycling collection services for each requested service for which the service is available within the City and surrounding villages. Such charge to provide for the removal on a once per fortnight basis of recyclable waste contained in two 240 litre mobile garbage bin. For any new assessments for the service, the charge will only**

become effective upon the commencement of the service and will be charged on a pro-rata basis.

(d) Sewerage Rates and Charges for 2019/2020

- (i) That whereas the Council has adopted the Operational Plan for the period commencing 1 July 2019 to 30 June 2020 it hereby resolves to make and levy, in accordance with Section 501 of the Local Government Act, 1993, a residential sewerage charge in respect of residential land an annual charge of eight hundred and fifty two dollars (\$852.00) per tenement.**
- (ii) That whereas the Council has adopted the Operational Plan for the period commencing 1 July 2019 to 30 June 2020 it hereby resolves to make and levy, in accordance with Section 501 of the Local Government Act, 1993, a residential sewerage charge in respect of non-connected residential land within 75 metres of service, an annual charge of six hundred and sixty nine dollars (\$669.00) per assessment.**
- (iii) That whereas the Council has adopted the Operational Plan for the period commencing 1 July 2019 to 30 June 2020 it hereby resolves to make and levy, the following charges in relation to non-residential properties, in accordance with Section 535 of the Local Government Act, 1993.**

Sewerage charges for non-residential properties for the 2019/2020 year will be based on:

- Water Consumption (C)**
- Sewer Discharge Factor (SDF)**
- Annual Access Charge (AC)**
- Sewerage Treatment Charge (STC)**
- Trade Waste Administration Charge (if applicable) (TWAC)**
- Trade Waste Usage Charge (if applicable) (TWUC)**
- Trade Waste Discharge Factor (if applicable) (TWDF)**

An annual sewer charge of eight hundred and fifty two dollars (\$852.00) for all chargeable properties connected to the Griffith City sewer system that has no water meter connection and has an estimated annual usage of less than five hundred kilolitres per annum (<500 kL). No consumption is chargeable. (CBD Area - Low)

An annual sewer charge of one thousand nine hundred and sixty five dollars (\$1,965.00) for all chargeable properties connected to the Griffith City sewer system that has no water meter connection and has an estimated annual usage of greater than five hundred kilolitres but less than eleven hundred kilolitres per annum (>500 to <1,100 kL). No consumption is chargeable. (CBD Area - Medium)

An annual sewer charge of three thousand four hundred and twenty six dollars (\$3,426.00) for all chargeable properties connected to the Griffith City sewer system that has no water meter connection and has an estimated annual usage of greater than eleven hundred kilolitres per

annum (>1,100 kL). No consumption is chargeable. (CBD Area - High)

An annual sewer charge of four hundred and seventy four dollars (\$474.00) for all non-residential properties not connected to the Griffith City sewer system that are within 75 metres of a water meter connection. No consumption is chargeable.

(iv) Access Charges (based on meter size)

An annual sewer access charge of four hundred and seventy four dollars (\$474.00) for all land rateable to the Griffith or Yenda water supply that has a 20mm connection.

An annual sewer access charge of six hundred and thirty six dollars (\$636.00) for all land rateable to the Griffith or Yenda water supply that has a 25mm connection.

An annual sewer access charge of one thousand and thirty five dollars (\$1,035.00) for all land rateable to the Griffith or Yenda water supply that has a 32mm connection.

An annual sewer access charge of one thousand five hundred and ninety nine dollars (\$1,599.00) for all land rateable to the Griffith or Yenda water supply that has a 40mm connection.

An annual sewer access charge of two thousand four hundred and seventy two dollars (\$2,472.00) for all land rateable to the Griffith or Yenda water supply that has a 50mm connection.

An annual sewer access charge of six thousand three hundred and three dollars (\$6,303.00) for all land rateable to the Griffith or Yenda water supply that has an 80mm connection.

An annual sewer access charge of nine thousand eight hundred and forty three dollars (\$9,843.00) for all land rateable to the Griffith or Yenda water supply that has a 100mm connection.

An annual sewer access charge of twenty two thousand and eighty three dollars (\$22,083.00) for all land rateable to the Griffith or Yenda water supply that has a 150mm or 200mm connection.

A sewerage treatment charge of one dollar and sixty five cents (\$1.65) per kilolitre.

(v) Annual Trade Waste Administration Charge

An annual trade waste administration charge of one hundred and five dollars (\$105.00) for Category One properties.

An annual trade waste administration charge of one hundred and ninety eight dollars (\$198.00) for Category Two properties.

An annual trade waste administration charge of five hundred and sixteen dollars (\$516.00) for Category Three properties.

A trade waste treatment charge of one dollar and thirty six cents (\$1.36) per kilolitre.

(e) Water Charges 2019/2020

That whereas the Council has adopted the Operational Plan for the period commencing 1 July 2019 to 30 June 2020 it hereby resolves to make and levy the following charges, in accordance with section 535 of the Local Government Act 1993:

(i) Access Charges

An annual water access charge of one hundred and thirty eight dollars (\$138.00) for all land rateable to the Griffith or Yenda water supply that has a 20mm connection.

An annual water access charge of two hundred and sixteen dollars (\$216.00) for all land rateable to the Griffith or Yenda water supply that has a 25mm connection.

An annual water access charge of three hundred and forty eight dollars (\$348.00) for all land rateable to the Griffith or Yenda water supply that has a 32mm connection.

An annual water access charge of five hundred and forty six dollars (\$546.00) for all land rateable to the Griffith or Yenda water supply that has a 40mm connection.

An annual water access charge of eight hundred and fifty two dollars (\$852.00) for all land rateable to the Griffith or Yenda water supply that has a 50mm connection.

An annual water access charge of two thousand one hundred and seventy five dollars (\$2,175.00) for all land rateable to the Griffith or Yenda water supply that has an 80mm connection.

An annual water access charge of three thousand three hundred and ninety nine dollars (\$3,399.00) for all land rateable to the Griffith or Yenda water supply that has a 100mm connection.

An annual water access charge of seven thousand six hundred and fifty dollars (\$7,650.00) for all land rateable to the Griffith or Yenda water supply that has either a 150mm or 200mm connection.

An annual water access charge of two hundred and sixteen dollars (\$216.00) for all land rateable to the Yenda water supply that has a dual connection (one raw meter and one potable meter regardless of meter size).

An annual water access charge of one hundred and thirty eight dollars (\$138.00) for all land rateable to the Griffith or Yenda water supply that is within 225 meters of a water main and can be connected to that supply but is not connected. No consumption is chargeable.

An annual water access charge of two hundred and seventy six dollars (\$276.00) for all land rateable to the Griffith or Yenda water supply that is part of a neighbourhood or strata title development which has a shared meter. No consumption is chargeable.

An annual water access charge of four hundred and eighty six dollars (\$486.00) for all land rateable to the Griffith water supply that has a

connection but is unmetered and has an estimated daily usage of less than one kilolitre per day (<1 kL), these being CBD (C1) properties. No consumption is chargeable.

An annual water access charge of nine hundred and nine dollars (\$909.00) for all land rateable to the Griffith water supply that has a connection but is unmetered and has an estimated daily usage of more than one kilolitre but less than six kilolitres per day (>1 - <6 kL), these being CBD (C2) properties. No consumption is chargeable.

An annual water access charge of two thousand nine hundred and seven dollars (\$2,907.00) for all land rateable to the Griffith water supply that has a connection but is unmetered and has an estimated daily usage of more than six kilolitres per day (>6 kL), these being CBD (C3) properties. No consumption is chargeable.

(ii) Consumption Charges

A water supply consumption charge of seventy two cents (\$0.72) per kilolitre for all potable water supplied per rateable connection to the Griffith or Yenda water supply up to a maximum of two hundred kilolitres (200 kL).

A water supply consumption charge of seventy two cents (\$0.72) per kilolitre for all potable water supplied per rateable connection to crisis accommodation centres as determined by council.

A water supply consumption charge of one dollar and forty three cents (\$1.43) per kilolitre for all potable water supplied per rateable connection to the Griffith or Yenda water supply in excess of two hundred kilolitres (200 kL).

A water supply consumption charge of thirty seven cents (\$0.37) per kilolitre for all raw water supplied per rateable connection to the Griffith or Yenda water supply.

A water supply consumption charge of two dollars and fifty cents (\$2.50) per kilolitre for all potable water supplied from designated standpipes at Griffith and Yenda.

A water supply consumption charge of ninety cents (\$0.90) per kilolitre for all non-potable water supplied from designated standpipes at Griffith and Yenda.

The rebate for an additional one hundred (100) kilolitres of free water for publicly accessible nature strips or reserves will be available for the 2019/2020 financial year.

(iii) Backflow Charges

An annual backflow prevention testing charge of one hundred and forty four dollars (\$144.00) per medium or high risk testable backflow prevention device.

An annual backflow prevention rental charge of thirty six dollars (\$36.00) per rateable connection to the Griffith or Yenda water supply that has a testable 20mm medium-risk backflow prevention device.

An annual backflow prevention rental charge of thirty nine dollars (\$39.00)

per rateable connection to the Griffith or Yenda water supply that has a testable 25mm medium-risk backflow prevention device.

An annual backflow prevention rental charge of fifty one dollars (\$51.00) per rateable connection to the Griffith or Yenda water supply that has a testable 32mm medium-risk backflow prevention device.

An annual backflow prevention rental charge of fifty four dollars (\$54.00) per rateable connection to the Griffith or Yenda water supply that has a testable 40mm medium-risk backflow prevention device.

An annual backflow prevention rental charge of sixty dollars (\$60.00) per rateable connection to the Griffith or Yenda water supply that has a testable 50mm medium-risk backflow prevention device.

An annual backflow prevention rental charge of one hundred and ninety two dollars (\$192.00) per rateable connection to the Griffith or Yenda water supply that has a testable 80mm medium-risk backflow prevention device.

An annual backflow prevention rental charge of two hundred and thirty seven dollars (\$237.00) per rateable connection to the Griffith or Yenda water supply that has a testable 100mm medium-risk backflow prevention device.

An annual backflow prevention rental charge of three hundred and sixty six dollars (\$366.00) per rateable connection to the Griffith or Yenda water supply that has a testable 150mm medium-risk backflow prevention device.

An annual backflow prevention rental charge of six hundred and three dollars (\$603.00) per rateable connection to the Griffith or Yenda water supply that has a testable 200mm medium-risk backflow prevention device.

An annual backflow prevention rental charge of forty five dollars (\$45.00) per rateable connection to the Griffith or Yenda water supply that has a testable 20mm high-risk backflow prevention device.

An annual backflow prevention rental charge of fifty seven dollars (\$57.00) per rateable connection to the Griffith or Yenda water supply that has a testable 25mm high-risk backflow prevention device.

An annual backflow prevention rental charge of sixty nine dollars (\$69.00) per rateable connection to the Griffith or Yenda water supply that has a testable 32mm high-risk backflow prevention device.

An annual backflow prevention rental charge of seventy five dollars (\$75.00) per rateable connection to the Griffith or Yenda water supply that has a testable 40mm high-risk backflow prevention device.

An annual backflow prevention rental charge of eighty one dollars (\$81.00) per rateable connection to the Griffith or Yenda water supply that has a testable 50mm high-risk backflow prevention device.

An annual backflow prevention rental charge of two hundred and twenty eight dollars (\$228.00) per rateable connection to the Griffith or Yenda water supply that has a testable 80mm high-risk backflow prevention device.

An annual backflow prevention rental charge of three hundred dollars

(\$300.00) per rateable connection to the Griffith or Yenda water supply that has a testable 100mm high-risk backflow prevention device.

An annual backflow prevention rental charge of four hundred and eighty dollars (\$480.00) per rateable connection to the Griffith or Yenda water supply that has a testable 150mm high-risk backflow prevention device.

An annual backflow prevention rental charge of nine hundred and thirty dollars (\$930.00) per rateable connection to the Griffith or Yenda water supply that has a testable 200mm high-risk backflow prevention device.

(f) Interest on Overdue Rates for 2019/2020

That whereas the Council has adopted the Operational Plan for the period commencing 1 July 2019 to 30 June 2020, it is determined that in pursuance of Section 566 of the Local Government Act, 1993 the interest rate for overdue rates and charges will be 7.5% as advised by the Office of Local Government.

REPORT

Pursuant to section 494, 496, 496A, 497 and 501 of the Local Government Act 1993, Council is required to make the Rates and Charges for the 2019/2020 year.

Domestic and Recycling Waste Fees and Charges

As informed at the Council Workshop 28 March 2019, Council was made aware of the proposed changes towards the domestic and recycling kerbside collection charges. As a result of the new contract entered into with JR Richards in November 2018, savings have been identified. The savings to the domestic waste service charge have been reflected in the domestic collection fee levied on ratepayers. The domestic capital levy has been adjusted as a result of preparing a Landfill Closure and Rehabilitation Plan with the increases to this levy used to contribute to reserves needed for the remediation of the existing landfill and development of a new landfill cell.

Savings incurred from the Domestic Recycling Waste contract will be passed on to ratepayers through a reduced 2019/20 domestic recycling charge.

Closure and Rehabilitation of the Existing Landfill

Council is required to close and rehabilitate the existing landfill according to the EPA regulation. This will cost approximately \$4,500,000 as per the draft Closure and Rehabilitation Plan. It is estimated that Council has approximately between 10 and 15 years of landfill capacity remaining in the current landfill.

Development of New Landfill Cell

The new landfill cell (existing Quarry) will have to be engineered and constructed. This will cost approximately \$7,000,000.

Therefore, approximately \$11,500,000 will be required in reserves within 10-15 years (please note that this is based on a 2.5% increase in dollar value each year and a 20% contingency factor).

The recommended Waste Management Charges for 2019/2020 reflect the funds needed for future reserves via the domestic capital levy.

OPTIONS

OPTION 1

The recommendation as printed.

In accordance with the Local Government Act, 1993, Council is required to adopt an Ordinary Rating structure comprising of one of the following:

- (a) an ad valorem rate (to which a minimum may be applied); or
- (b) a base amount (of up to 50%) to which an ad valorem rate is added.

OPTION 2

Any other resolution of Council.

POLICY IMPLICATIONS

Requirement of the Local Government Act (1993).

LOCAL GOVERNMENT ACT 1993 - SECT 494

Ordinary rates must be made and levied annually

494 ORDINARY RATES MUST BE MADE AND LEVIED ANNUALLY

- (1) A council must make and levy an ordinary rate for each year on all rateable land in its area.
- (2) Each category or subcategory of ordinary rate is to apply only to land of the same category or subcategory.

FINANCIAL IMPLICATIONS

The rate structure and special charges adopted will be the basis of the estimates for the 2019/2020 budget.

LEGAL/STATUTORY IMPLICATIONS

The 2019/2020 Operational Plan has been prepared in accordance with section 405 of the Local Government Act, 1993.

In accordance with Section 494 of the Local Government Act 1993, Council must make and levy an ordinary rate on all rateable land within its area.

The structure of the rate must be in accordance with Section 497 of that Act.

The special charges proposed for the provision of sewerage and trade waste services are in accordance with Section 501 of the Local Government Act 1993.

The annual charge proposed for the management of storm water is in accordance with Section 496A of the Local Government Act 1993.

ENVIRONMENTAL IMPLICATIONS

Adoption of rates and charges will assist Council to meet its Environmental obligations.

COMMUNITY IMPLICATIONS

The setting of rates and charges has been undertaken following a public exhibition period and the opportunity for community input. Further, the proposed rates and charges do not extend to a special rate variation.

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item C7 - Integrate the core themes, to ensure realistic and achievable goals are set.

The adoption of rates and charges will enable Council to deliver its Operational Plan for the next financial year.

CONSULTATION

Senior Management Team

Revenue Team Leader

Councillors

Senior Managers and operational staff

ATTACHMENTS

Nil

CLAUSE **CL03**

TITLE **Transfer of licence agreements from Brian and Pamela Young and The Owners Strata Plan 79997 to Matthew and Lynnette Kenny at 124-126 Wakaden Street, Griffith**

FROM **Daphne Bruce, Corporate Property Officer**

TRIM REF **19/37329**

SUMMARY

The former owners of 124-126 Wakaden Street Griffith, (The Owners Strata Plan 79997), Brian and Pamela Young, have sold their premises to Matthew and Lynnette Kenny.

There are currently two licence agreements in place for parking on the road reserve adjoining the property, which were required as part of the development of the site. One agreement is for 15 car parking spaces within the Wakaden Street road reserve licensed to Brian James Young and Pamela Anne Young. A further 22 car parking spaces on the road reserve in Blumer Avenue is under licence to The Owners of Strata Plan 79997.

Brian and Pamela Young have requested the transfer of both licence agreements to Matthew John Kenny and Lynnette Kenny.

RECOMMENDATION

- (a) Council approve the transfer of the licence agreement for 22 car parking spaces adjoining 124-126 Wakaden Street, Griffith, (CP/SP79997) from The Owners Strata Plan 79997 to Matthew John Kenny and Lynnette Kenny from 8 May 2019.**
- (b) Council approve the transfer of the licence agreement for 15 car parking spaces adjoining 124-126 Wakaden Street, Griffith, (1/SP79997 & 2/SP79997) from Brian James Young and Pamela Anne Young to Matthew John Kenny and Lynnette Kenny from 8 May 2019.**
- (c) Matthew John Kenny and Lynnette Kenny pay all applicable costs and charges associated with the transfer of the licence agreements together with Council's Administration Fee, currently \$401.**
- (d) The licence fees be charged in accordance with Council's adopted Revenue Policy, currently \$53 per space p.a. for the 2018/2019 financial year, in addition to rates and charges.**
- (e) Council authorise the Mayor and General Manager to execute the transfer document on behalf of Council under the Common Seal if required.**

REPORT

As a condition of the original development of 124-126 Wakaden Street Griffith, The Owners of Strata Plan 79997, Brian James Young and Pamela Anne Young, were required to enter into a licence agreement for 22 car parking spaces located within the road reserve on

Blumer Avenue to service their development. Also as a condition of occupation of a building onsite for a gymnasium it was further required to provide 15 car park spaces, which were accommodated on Councils road reserve in Wakaden Street.

The licence for 22 car parking spaces is in the name of The Owners of Strata Plan 79997. The licence agreement for the 15 car parking spaces is in the name of Brian James Young and Pamela Anne Young.

Brian and Pamela Young have requested Council to transfer both licence agreements to Matthew John Kenny and Lynnette Kenny as they have purchased the premises as of 8 May 2019. The licence agreement for 22 car park spaces will expire as of 16 August 2022 and the licence Agreement for 15 spaces, will expire as of 31 August 2022. The licensee at that time, may be desirous to combine both licence agreements into one agreement.

There are no outstanding fees and charges associated with both licence agreements.

OPTIONS

OPTION 1

As per the recommendation.

OPTION 2

Council may determine an alternate option.

POLICY IMPLICATIONS

Road Reserves – Lease for Commercial Premises UD-CP-301

FINANCIAL IMPLICATIONS

The car park spaces are charged at \$53 p.a. together with the payment of rates. The applicant is responsible for the payment of all legal fees associated with the transfer of the two licence agreements. Council will also invoice an Administration Fee of \$401 on signing of the agreement by all parties.

LEGAL/STATUTORY IMPLICATIONS

Nil

ENVIRONMENTAL IMPLICATIONS

All environmental assessments were undertaken as part of the original development approvals process.

COMMUNITY IMPLICATIONS

The community would expect Council to support the growth of businesses within the community whilst receiving an income for providing parking for that business.

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item 6.2 Promote opportunities to assist existing businesses to grow.

CONSULTATION

Senior Management Team

ATTACHMENTS

- | | | |
|-----|--|----|
| (a) | Authorisation to transfer licence agreements ↓ | 30 |
| (b) | Plan of Parking Area ↓ | 32 |

CAPPELLOWE LAWYERS

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E-MAILED
14 May 2019



OUR REF: BMF:SS:5319

Att: Daphne Bruce
Griffith City Council
1 Benerembah Street
GRIFFITH NSW 2680

REPLY TO GRIFFITH

Dear Sir/Madam,

**RE: KENNY PURCHASE FROM PAMBRIA PTY LTD ATF PAMBRIA
SUPERANNUATION FUND
PROPERTY: LOT 2/124 – 126 WAKADEN STREET, GRIFFITH NSW 2680**

We refer to the above matter and now advise that settlement for the above premises took place on 8 May 2019.

The new owners are Matthew John Kenny and Lynnette Kenny of 48 Doolan Crescent, Griffith NSW 2680.

We would be pleased if you could begin the transfer of both the carpark licences into the purchaser's names. These being the carparks of Wakaden street containing both 15 and 22 carparks being the land of CP/SP79997, 1/SP79997 and 2/SP79997.

The Vendors, Brian James Young and Pamela Anne Young agree to the above transfer being made and an authority has been attached for your attention.

Could you kindly attend to the above at your earliest convenience.

Yours faithfully,
CAPPELLO ROWE
Per:

A handwritten signature in cursive script that reads 'Cappello Rowe'.

ANDREW ROWE
Solicitor.
E: andrew.rowe@cappellowe.com.au
Enc1.

AUTHORITY AND DIRECTION

Att: Daphne Bruce
Griffith City Council
1 Benerembah Street
GRIFFITH NSW 2680

**RE: KENNY PURCHASE FROM PAMBRIA PTY LTD ATF PAMBRIA
SUPERANNUATION FUND
PROPERTY: LOT 2, 124-126 WAKADEN STREET, GRIFFITH NSW 2680**

Dear Sir/Madam,

We, **BRIAN JAMES YOUNG AND PAMELA ANNE YOUNG** authorise you to transfer the below mentioned carpark into the names of Matthew John Kenny and Lynnette Kenny, being the new owners of the above-mentioned premises.

- Wakaden Street carpark being the land in folio identifiers 1/SP79997 and 2/SP79997, containing 15 car spaces; and
- Wakaden Street carpark being the land in folio identifier CP/SP79997, containing 22 car spaces.

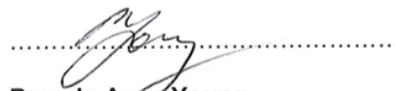
Signed:



Brian James Young

Date: 8 MAY 2019

Signed:



Pamela Anne Young

Date: 8 MAY 2019





Griffith City Council
PO Box 485
1 Benemurrah Street
Griffith NSW 2680
Telephone: 02 6962 8100
Fax: 02 6962 7161
Email: griffith@griffith.nsw.gov.au

Important Notice!

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Drawn By: daphnebr

Projection: GDA94 / WGA zone 55

Date: 27/05/2019 3:00 PM

Map Scale: 1:1298 at A4

CLAUSE **CL04**

TITLE **Griffith Regional Sports Precinct Project**

FROM **Max Turner, Director Business, Cultural and Financial Services**

TRIM REF **19/40586**

SUMMARY

The Griffith Regional Sports Precinct Project is underway now that all funding requirements have been secured. The Project has two sites for infrastructure (Westend Oval and Griffith Regional Aquatic Leisure Centre).

The reason for this report is to advise the current status and gain endorsement for certain actions relating to proceeding with the Project.

RECOMMENDATION

- (a) That Council endorse the existing Proposed Plan Stage 1 for the Griffith Regional Aquatic Leisure Centre (GRALC) Development for the construction of a 50M Pool, amenities facilities, new plant room and associated landscaping to meet the requirements of the Griffith Regional Sports Precinct Project and associated funding agreements.**
- (b) That Council endorse in principle the Future Aspirational Master Plan for the Griffith Regional Aquatic Leisure Centre.**
- (c) That Council staff commence preliminary consultation with key stakeholders to assist in informing the detailed design requirements for the Project including the redevelopment of Westend Oval and GRALC Stage 1.**

REPORT

The Griffith Regional Sports Precinct Project has been in progress since 2017 with the following main elements achieved;

- Securing funding of \$24.8M for the Project through:
 - 1. Successful grant applications/funding agreements completed with;
 - Regional Sports Infrastructure Fund (NSW Government) for \$10.0M
 - Building Better Regions Fund (Commonwealth Government) for \$4.5M
 - 2. Griffith City Council committing \$10.3M (via \$8.0M loan through TCorp)
 - Extensive community consultation with key stakeholders undertaken

- Completion of Master Plans/Concept Plans for each site
- EOI's completed for key consultancy services relating to Project Management, Detailed Design and Design & Construct Contractors (re 50M Pool component)
- Preparation of detailed tender specifications to call tender for Project Management services in early June 2019.
- Council Workshop held on 21 May 2019 where information was presented by PCYC on a model that would see a partnership approach to developing the Westend Oval Stadium and the possibility of PCYC investing funds at the site and an appropriate operating arrangement.
- MOU to be forwarded and further discussion to take place.

Current actions being planned or implemented;

- Separating the two site developments into separate components and re-aligning the Milestones to better represent the timelines that have altered due to the interest from PCYC, the lapse of time required to finalise funding agreements and the differing nature of the developments at each site which will see different timing requirements to plan, design and complete the construction ie GRALC should be completed faster as it will be a design and construct tender.
- Consultation and agreement with the funding bodies to amend the Milestone Schedules to reflect the amended timing, and
- Call Project Management tender.

OPTIONS

OPTION 1

The recommendation as printed.

OPTION 2

Any other resolution of Council.

POLICY IMPLICATIONS

Not Applicable

FINANCIAL IMPLICATIONS

The Project has been costed (Quantity Surveyed) and both internal and external funding sources secured. The Project is included in Councils 10 Year Long Term Financial Plan.

LEGAL/STATUTORY IMPLICATIONS

Not Applicable

ENVIRONMENTAL IMPLICATIONS

Not Applicable

COMMUNITY IMPLICATIONS

The construction of this infrastructure will meet long term community aspirations included in the Guiding Griffith 2040 Community Strategic Plan. The Project once delivered, will provide high quality sporting and recreational infrastructure in the City and provide a mechanism to increase sports tourism through attracting larger scale state and regional events and therefore stimulate more economic growth in the local economy.

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item 2.3 Maximise opportunities to secure external funding for partnerships, projects and programs to improve the quality of life for residents and visitors.

CONSULTATION

Senior Management Team

PCYC

ATTACHMENTS

- | | | |
|-----|---|----|
| (a) | GRALC Proposed Plan Stage One ↓ | 36 |
| (b) | GRALC Future Aspirational Master Plan ↓ | 37 |

PROPOSED PLAN



OLYMPIC STREET

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MASTER PLAN

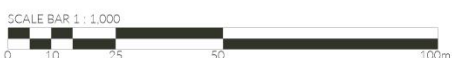


OLYMPIC STREET



Griffith City Council
PO Box 465
18 Benewick Street
Griffith NSW 2800
Telephone: 02 6862 0100
Fax: 02 6862 7365
Email: info@griffithcity.nsw.gov.au

Important Notice!
This map is not a precise survey document. Accurate locations can only be determined by a survey on the ground.
This information has been prepared for Council's internal purposes and for no other purpose. No statement is made about the accuracy or suitability of the information for use for any purpose (including the purpose for which it was made) or about the accuracy, reliability, completeness or suitability for any particular purpose and Council is not responsible for any loss or damage, including without limitation, liability to negligence, for all expenses, losses, damages (including lost profits or consequential damages) and costs, which you might incur as a result of the data being used or incorporated in any way and for any claims.



Title: Master Plan
Location: Olympic Street
Client: Griffith City Council
Date: 18 March 2019
Designer: NRB
Scale: 1:1000

**COMMUNITIES COMMITTEE
HELD IN THE MURRAY ROOM, GRIFFITH ON
TUESDAY, 21 MAY 2019 COMMENCING AT 4.06 PM**

PRESENT

Councillor Deb Longhurst (Chair); Rina Mercuri (Councillor - Alternate); Manjit Singh Lally (Community Representative); Monica Beckman (Community Representative); Olga Forner (Community Representative); and Patricia Cox (Community Representative)

Quorum = 3

STAFF

Community Development Officer, Tanya Aramini; Community Development Officer - Aboriginal Liaison Officer, Linda Baulch; Minute Secretary, Kirsty McKenzie; and Director Economic & Organisational Development, Shireen Donaldson

1 APOLOGIES

RECOMMENDED on the motion of Monica Beckman and Patricia Cox that apologies be received from Councillor Anne Napoli, Lexi Hone and Ms Peta Dummett.

Absent: Judy Johnson (Community Representative)

2 CONFIRMATION OF MINUTES

RECOMMENDED on the motion of Olga Forner and Manjit Singh Lally that the Minutes of the previous meeting held on 19 February 2019, having first been circulated amongst all members, be confirmed.

RECOMMENDED on the motion of Olga Forner and Manjit Singh Lally that the Minutes of the previous meeting held on 9 April 2019, having first been circulated amongst all members, be confirmed.

3 BUSINESS ARISING

3.1 Minutes from 19 February 2019

Nil.

3.2 Minutes from 9 April 2019

Ms Donaldson advised that the current grants and sponsorship policies are all under review and consideration is being given to having them all amalgamated under one umbrella. The reasoning behind the amalgamation of these policies into a new policy

(name being considered for the new policy is: Financial Assistance Policy) is to help Council staff keep a better running tally of all money Council gives away.

A question about recipients acquitting of funds after an event was raised and it was agreed by all that Council should consider implementing a better follow-up procedure.

4 DECLARATIONS OF INTEREST

Pecuniary Interests

There were no pecuniary interests declared.

Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

Less Than Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

5 ITEMS OF BUSINESS

CL01 UPDATED CODE OF CONDUCT INDUCTION

RECOMMENDED on the motion of Councillor Rina Mercuri and Manjit Singh Lally that the:

- (a) information be received; and
- (b) Members be inducted into Council's updated Code of Conduct Policy (GOV-CP-404).

CL02 REFUGEE SUPPORT SERVICES

RECOMMENDED on the motion of Monica Beckman and Olga Forner that the report be noted and the attachments missing from the report (Attachment (a)) be emailed to Committee members.

CL03 COMMUNITY DEVELOPMENT COORDINATOR REPORT

Councillor Mercuri confirmed the Wide Angle Film Festival, held at 5.30pm on Thursday, 2 May 2019 was a great night. She believed the wet weather and timing of the event were contributing factors to the poor attendance and hopes an earlier start next year will encourage more participation.

RECOMMENDED on the motion of Monica Beckman and Patricia Cox that the Committee note the report.

CL04 COMMUNITY DEVELOPMENT OFFICER UPDATE

Ms Aramini provided supplementary commentary to her written report which included:

Youth Interagency

The current focus is getting this year's Youth Committee up and running as last year's members have moved on (eg. to tertiary education).

Youth Week

Funded by FACTS with Griffith City Council providing matching funds.

The Youth Week activities at Family Funland were enjoyed by all. Lots of positive feedback was received from both the kids and parents who participated.

Safe on Social

Concern has been expressed that this year's event is too close to the high school trials (in August).

This event was previously held at Wade High campus and they expressed their enthusiasm for the program.

Recommended website for more information for Safe on Social is:

<https://www.safeonsocial.com/>

RECOMMENDED on the motion of Olga Forner and Manjit Singh Lally that the information be received.

CL05 ABORIGINAL LIAISON

Ms Baulch provided supplementary commentary to her written report which included:

- Aboriginal Medical Service are looking for sponsors for their awards night.
- Community Working Party will be meeting next week.
- NAIDOC Week starts Sunday, 7 July 2019.

RECOMMENDED on the motion of Councillor Rina Mercuri and Monica Beckman that the committee note the report.

6 OUTSTANDING ACTION REPORT

RECOMMENDED on the motion of Patricia Cox and Olga Forner that the report be noted.

7 GENERAL BUSINESS

Affordable Housing

- Reports are in the process of being collated for presentation to Council.
- Through lots of community, business and interdepartmental consultation a strategy is now being prepared.

- The two groups identified as having the most difficulty with housing are youth and aged.

Compassionate Communities Committee

Councillor Longhurst provided a flyer from Compassionate Communities advertising a free and interactive workshop for Carers for the Committee Members information (Attachment (b)).

8 NEXT MEETING

The next meeting of the Communities Committee is to be held on Tuesday, 20 August 2019 at 4.00 pm.

There being no further business the meeting terminated at 5.13pm.

Confirmed:

CHAIRPERSON

ATTACHMENTS

- (a) Letter from The Hon. Sussan Ley MP – Refugees in Griffith – dated 6 March 2019
- (b) Compassionate Communities flyer – free workshop for and about carers – 5 June 2019



Ms Peta Dummett
Community Development Coordinator
Griffith City Council
PO Box 485
GRIFFITH NSW 2680

Dear Ms Dummett

Refugees in Griffith LGA

Thank you for your letter requesting a list of current programs and resources provided for refugees in the Griffith LGA.

The Australian Government recognises the valuable contribution that humanitarian entrants and migrants make to Australia, enriching our culture and building the social and economic fabric of our society. The Government provides a range of settlement services to support humanitarian entrants and eligible migrants to settle into their new life in Australia. Two key settlement programs which are delivered in Griffith or nearby regions are the Humanitarian Settlement Program (HSP) and the Settlement Engagement and Transition Support (SETS) program.

The HSP provides early practical support to humanitarian entrants following their arrival in Australia, helping to build the skills and knowledge they need to become self-reliant and active members of the Australian community. Services are tailored to the individual needs of clients and delivered through a needs-based, case-management approach.

HSP services are delivered in 11 contract regions across Australia by five service providers, based in 25 settlement locations, details can be found at: <https://www.dss.gov.au/our-responsibilities/settlement-services/programs-policy/settlement-services/settlement-services-locator>. Humanitarian entrants are not directly settled into Griffith; however, the settlement location closest to Griffith is Wagga Wagga, with services delivered by the Australian Red Cross from their shopfront location at 88 Murray Street, Wagga Wagga.

SETS delivers a range of settlement services to humanitarian entrants and eligible migrants in their first five years in Australia, with a focus on fostering social participation, economic well-being, independence, personal wellbeing and community

517 Kiewa Street
(PO Box 672)
ALBURY NSW 2640
Tel: (02) 6021 3264


farrer@aph.gov.au


www.sussanley.com

100 Yambil Street
(PO Box 1093)
GRIFFITH NSW 2680
Tel: (02) 6964 1212

connectedness. This includes connections to sporting, recreational, religious, cultural and other services in their local communities.

SETS aims to equip and empower humanitarian entrants and other eligible migrants and their communities to address their settlement needs, in order to improve their social participation, personal and economic wellbeing, and community connectedness. SETS commenced on 1 January 2019, as an enhanced version of the previous Settlement Grants program.

SETS includes two components:

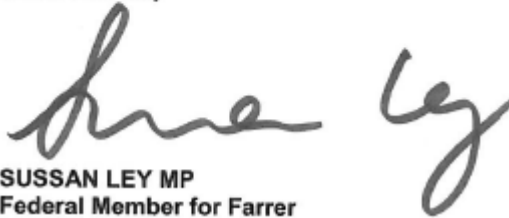
- SETS – Client Services provides clients with settlement-related advice, advocacy, and assistance to access mainstream and other relevant services.
- SETS – Community Capacity Building helps new and emerging community groups and organisations to support their specific communities towards collectively ensuring that positive settlement outcomes are sustained in the long term.

Centacare South West will receive funding of \$477,000 under 'SETS – Client Services' over the period 1 January 2019 to 30 June 2022 to service eligible clients in the Griffith and Leeton regions of NSW. As you may be aware, Centacare South West has a shopfront location in Griffith at 140 Yambil Street (phone: 1300 619 379, email: info@centacareswnsw.org.au).

All settlement services are designed to work in combination with other community and mainstream services to ensure that clients access and benefit from the wide range of support available, including health, family, housing, education, employment, and local government services.

I hope that the above information is of use to you and welcome any further comments or queries you may have.

Yours sincerely



SUSSAN LEY MP
Federal Member for Farrer



phn
MURRUMBIDGEE

An Australian Government Initiative

*Well People, Resilient Communities
across the Murrumbidgee*

Compassionate Communities

Creating a supportive culture for people who care for
someone with a life-limiting illness

You are invited to attend a free and interactive workshop

Encouraging carers to say 'yes' to help
plus information on carer support options

Wednesday 5 June

9.30am - 12pm

Mirrool Room 1

Griffith Ex-Servicemen's Club

Morning tea will be provided

Come and find out about the support available to carers through Intereach,
our local Commonwealth Respite & Carelink Centre.
We will also learn what is stopping us from seeking and accepting the help we need
when caring for someone at home.

Community members and all
service providers are encouraged to attend

Registration: <https://mphn.org.au/compassionate-communities-griffith-registration-form>

Further information: Margaret King, Chair Griffith LHAC

Mob: 0409 815 901



Health
Murrumbidgee
Local Health District

TITLE Outstanding Action Report

TRIM REF 19/40626

RECOMMENDATION

The report be noted.

ATTACHMENTS

(a) Outstanding Action Report - Council Meeting - 11 June 2019 [↓](#)

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OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 11 JUNE 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
14 May 2019	CC02 CODE OF CONDUCT COMPLAINT	GM	70973	19/151	RESOLVED on the motion of Councillors Mike Neville and Glen Andreazza that: (a) The investigators report be adopted and that under section 8.56 (e) of the Code of Conduct "in the case of a breach by a councillor, that the councillor be formally censured for the breach under section 440G of the Act". (b) The matter be referred to the Division (Office Local Government) for further action under the misconduct provisions of the Act.	27/5/19 Matter referred to Office Local Government.
14 May 2019	CCMM01 - RESPONSE TO AUDIT, RISK AND IMPROVEMENT COMMITTEE REGARDING COUNCIL STAFF HEALTH AND WELL-BEING	GM	70969	19/149	RESOLVED on the motion of Councillors Mike Neville and Dino Zappacosta that the Mayor forward the letter received from the Audit, Risk and Improvement Committee to the OLG for advice.	17/05/2019: Letter written to Office of Local Government 15 May 2019. Letter written to Chair of Audit, Risk and Improvement Committee advising of Council's resolution.
14 May 2019	CL05 - ADOPTION OF DEBT RECOVERY AND RATES PROCESSING MANAGEMENT POLICIES	RTL	70966	19/144	RESOLVED on the motion of Councillors Mike Neville and Glen Andreazza that: (a) Council place the draft revised policies on public exhibition for 28 days. (b) If any submissions are received, a further report be prepared for Council. (c) If no submissions are received, the draft policy be considered as adopted by Council as at the date of the conclusion of the advertised exhibition period.	20/05/2019: Information noted.

OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 11 JUNE 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
14 May 2019	CL04 - 2019 NSW LOCAL ROADS CONGRESS	DIO	70965	19/141	RESOLVED on the motion of Councillors Dino Zappacosta and Deb Longhurst that: (a) Council nominate the Mayor and General Manager (or their delegates) to attend the NSW Local Roads Congress on 3 June 2019. (b) Expenses to attend the Conference be paid by Council in accordance with the Councillors Payment of Expenses and Provision of Facilities Policy.	27/5/19 Registrations carried out.
23 April 2019	CL05 – Model Code of Meeting Practice Policy	GovM	70368	19/121	RESOLVED on the motion of Councillors Dino Zappacosta and Simon Croce that: (a) Council endorse the draft Model Code of Meeting Practice as attached to this report including highlighted options and supplementary provisions. (b) The draft Model Code of Meeting Practice be placed on public exhibition 28 days and provide members of the community at least 42 days in which to comment on the draft Code. (c) If any submissions are received, a further report be prepared for Council. (d) If no submissions are received, the draft Model Code of Meeting Practice policy be considered as	24/04/2019: The draft Model Code of Meeting Practice was placed on Public Exhibition for 42 days and closes on 14 June 2019.

OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 11 JUNE 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
					adopted by Council as at the date of the conclusion of the advertised exhibition period.	
23 April 2019	CL06 – Endorsement of the Draft Delivery Program 2017/18 - 2020/21 Incorporating the Draft Operational Plan (Budget) for the 2019/20 Financial Year	DE&OD	70369	19/122	RESOLVED on the motion of Councillors Mike Neville and Simon Croce that: (a) Council endorse the draft Delivery Program 2017/18 - 2020/21 incorporating the Operational Plan (Budget) 2019/20 and draft Ten Year Long Term Financial Plan 2019/20 to 2028/29. (b) Council place the draft Delivery Program 2017/18 - 2020/21 incorporating the Operational Plan (Budget) 2019/20 and draft Ten Year Long Term Financial Plan 2019/20 to 2028/29 on public display for 28 days during which time a community consultation process will be implemented including community information session. (c) Following the public exhibition period, the draft Delivery Program 2017/18 - 2020/21 incorporating the Operational Plan (Budget) 2019/20 and draft Ten Year Long Term Financial Plan 2019/20 to 2028/29 be presented to Council for adoption by 30 June 2019.	09/05/2019: Draft documents on Public Exhibition to 24 May 2019. Public Meetings to be held 9 & 15 May 2019. 03/06/2019: Report to Council meeting 11 June 2019.

OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 11 JUNE 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
					(d) \$50,000 for a toilet at Yenda Cemetery and \$50,000 contribution for 50/50 Road Sealing Policy be added to the draft budget.	
23 April 2019	13 – Councillor Question Time Question from Councillor Mike Neville	GM	69979		Councillor Neville asked "Does Council's Parks and Gardens Budget include funds to maintain/preserve existing equipment donated to Council?" If so, could some work be done on the Steam Engine in Apex Park North Griffith? The former roof over the engine tractor has been removed and the supporting timbers are now falling off. Mr Stonestreet advised that there is a funding allocation for park maintenance and this will be provided to Councillors.	13/5/2019: Email will be distributed to Councillors regarding Parks & Gardens' budget.
9 April 2019	Notice of Motion - Silo Art Tharbogang	TM	69554	19/130	RESOLVED on the motion of Councillors Christine Stead and Doug Curran that Council investigate the potential of establishing a silo art installation at Tharbogang silos, taking into consideration current ownership, usage and costing.	9/4/2019: Investigations commenced with GrainCorp (owner of Tharbogang and Yenda silos), investigation of funding opportunities and preliminary discussion with potential artists visiting Griffith for Banna Lane re costing, logistics and process of silo art. Report to Council dependant on initial response from GrainCorp regarding alignment of Tharbogang

OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 11 JUNE 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
						silo with GrainCorp policy on Silo Art. 03/06/2019: Report to Council meeting 25 June 2019.
9 April 2019	CL02 Roads to Recovery - 2019-2024 Proposed Five Year Program	DI&O	69547	19/118	RESOLVED on the motion of Councillor Mike Neville that CL02 Roads to Recovery 2019-2024 Proposed Five Year Program LAY ON THE TABLE .	9/4/2019: Roads to Recovery additional funding will be referenced in the final budget report with priorities to be determined in a subsequent report to Council.
26 March 2019	Question Time – Cr Neville re City Approaches	DI&O	69173	19/108	"Being a regular visitor to Griffith I often note the approaches the city from the southern and eastern sides. Both in my view need action to improve the vista for the benefit of the city and its ratepayers." RESOLVED on the motion of Councillors Mike Neville and Glen Andreazza that a report be presented to Council on the Hanwood Rest Area located at the intersection of the Kidman Way and Millis Road, including ownership, responsibility and costings to beautiful the area.	11/4/2019: Considered by the Traffic Committee 2 April 2019.
12 March 2019	Minutes Transport Committee Meeting 11 February 2019	DIO	68341	19/081	RESOLVED on the motion of Councillors Simon Croce and Brian Simpson that the recommendations as detailed in the Minutes of the Transport Committee meeting held on 11 February 2019 be adopted. Councillor	15/04/2019: Investigations commenced.

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OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 11 JUNE 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
					Zappacosta requested that Council staff investigate the turning arrangements to businesses on the eastern side of Blumer Avenue south of Altin Street. Mr King advised this would be taken on notice and reported back through the Transport Committee.	
22 January 2019	CL01 – DA 182/2018 – New Rural Dwelling	CLP&C and DI&O	66247	19/006	RESOLVED on the motion of Councillors Doug Curran and Anne Napoli that the Council policy, WO-CP-602 Maintenance & Upgrading of Unsealed Roads, be amended to reflect the scenario as outlined in the report, under which applicants constructing single rural dwellings are required to contribute to the upgrade of unsealed roads. The draft amended policy will be reported to Council for consideration and Recommendations (a) and (b) in the report, as printed below, LAY ON THE TABLE: (a) Griffith City Council as the consent authority pursuant to section 4.16(1) of the Environmental Planning & Assessment Act 1979 grant consent to Development Application 182/2018 for dwelling at Lot 45 DP 756060, 182 McCann Road, Warburn subject to the conditions, including those set out in Attachment (d) of the report; (b) The application be delegated to the Director Sustainable Development	4/02/2019: Council resolved to undertake traffic counts for McCann road and draft the amendments to the Maintenance & Upgrading of Unsealed Roads Policy.

OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 11 JUNE 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
					for the preparation and issue of the notice of determination; ...	
22 January 2019	Councillor Question Time – Cr Zappacosta re Hot Weather Policy	DBC&FS	66261		"With the current hot weather upon us, what relief is available for residents who want to escape the searing heat? Is the Aquatic Centre available at a reduced or exempt entry fee?" Mr Stonestreet advised that whilst the Griffith Regional Aquatic Leisure Centre is most amenable for relief it would be advisable to prepare a policy to provide guidance. Councillor Zappacosta requested that information be made available for the community to provide assistance during periods of high temperatures. Mr King advised that Local Government has a role to play in emergency management and that a heatwave alert has been activated. The NSW Department of Health also provides information for the community through the Beat the Heat campaign.	4/02/2019: (a) Council aquatic centre was open each day for the Australia Day weekend with free admission on Australia Day (Saturday) into the pool. There were a total of 422 free admissions on 26 February 2019 out of 489 entries. (b) Discussion of draft policy (Public Access to Griffith Facilities During Extreme Heat Conditions) at Council Workshop on 19 March 2019.
22 January 2019	CC03 – Tender 17-18/19 Construction Stormwater Drainage & Detention Basins	DU	66267	19/024	RESOLVED on the motion of Councillors Dino Zappacosta and Doug Curran that: (a) Council, in accordance with Section 178(1)(b), of the Local Government Regulation, reject all tenders submitted for Tender 17-18/19 Construction of Stormwater Drainage & Detention Basins due	4/02/2019: Letters have been sent out to all tenderers. 15/04/2019: Negotiations continuing – to be finalised late April/May.

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OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 11 JUNE 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
					to all submissions being well over the allocated budget amount. (b) Council, in accordance with Section 178(4)(a), does not need to call fresh tenders for Tender 17-18/97 as a suitably qualified and experienced tenderer is available to negotiate with. (c) Council, in accordance with Section 178(3)(e), enter into negotiations with the three lowest priced tenderers, Hynash Constructions, Cartwright Civil Engineering and Kirkman Constructions being the preferred tenderers. (d) In accordance with Section 178(4)(b), the reason for entering into negotiations with the three lowest priced tenderers are that they scored the highest in the tender evaluation process. (e) Council authorise the General Manager to negotiate with Hynash Constructions, Cartwright Civil Engineering and Kirkman Constructions with a further report to be presented to Council.	03/06/2019: Report to Council meeting 11 June 2019.
11 December 2018	CL05 – DA 182/2018 - New Rural Dwelling	CLP&C	64909	18/391	RESOLVED on the motion of Councillors Brian Simpson and Christine Stead that:	20/12/2018: NoD prepared as per resolution. Issuing of approval pending legal advice.

OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 11 JUNE 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
					(a) Griffith City Council as the consent authority pursuant to section 4.16(1) of the Environmental Planning & Assessment Act 1979 grant consent to Development Application 182/2018 for dwelling at Lot 45 DP 756060, 182 McCann Road, Warburn subject to the conditions, including those set out in Attachment (d) of the report; excluding conditions relating to the upgrading of McCann Road, and (b) The application be delegated to the Acting Director Sustainable Development for the preparation and issue of the notice of determination. (c) The issue concerning the upgrading of McCann Road being draft conditions of consent 14, 34, 35, 36 and 37 lay on the table pending; Council determine the costing of upgrading McCann Road, and Consultation with all residents and land owners along McCann Road.	14/01/2019: (a) Rescission Motion Received; and (b) Report being presented to Council on 22 January 2019. 4/02/2019: Council resolved to undertake traffic counts for McCann Road and draft the amendments to the Maintenance & Upgrading of Unsealed Roads policy.
13 November 2018	CL03 – Planning Proposal 5/2018 Lot 6 DP 1133395	CLPC	65923	18/353	RESOLVED on the motion of Councillors Mike Neville and Rina Mercuri that: (a) Council endorse Planning Proposal 5/2018 set out in Attachment (a) that seeks amendment to Griffith Local Environmental Plan 2014 to	4/02/2019: Planning proposal submitted to Department of Planning. 6/05/2019: Further information to be provided to Department of Planning.

OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 11 JUNE 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
					amend the zoning boundary that splits Lot 6 DP 1133395; and (b) Council give delegated authority to the Director Sustainable Development to submit the Planning Proposal to the Department of Planning and Environment to seek a Gateway Determination; and (c) Should Gateway approval be granted by the Department of Planning & Environment the Planning Proposal be placed on public exhibition for community consultation, and where identified consult with any relevant public authority; and (d) If any submissions are received, Council considers such before the proposal is re-submitted to the Department of Planning and Environment for consideration and final assessment.	
23 October 2018	CL02 – Planning Proposal 4/2018 Lots 309 & 610 DP 751743 and Lots 102 & 104 DP 1018460 Boorga Rd, Nericon	CLPC	62830	18/334	RESOLVED on the motion of Councillors Simon Croce and Mike Neville that: (a) Council endorse Planning Proposal 4/2018 set out in Attachment A of the report that seeks amendment to Griffith Local Environmental Plan 2014 to reduce the minimum lot size requirements for the purpose of subdivision for Lots 309 & 610 DP	19/11/2018: Planning proposal has been forwarded to Department for consideration. 15/04/2019: To be followed up. 6/05/2019: Department of Planning has requested further information on

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OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 11 JUNE 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
					751709 and Lots 102 & 104 DP 1018460; and (b) Council give delegated authority to the Director Sustainable Development to submit the Planning Proposal to the Department of Planning and Environment to seek a Gateway Determination; and (c) Should Gateway approval be granted by the Department of Planning & Environment the Planning Proposal be placed on public exhibition for community consultation, and where identified consult with any relevant public authority; and (d) If any submissions are received, Council considers such before the proposal is re-submitted to the Department of Planning and Environment for consideration and final assessment; and (e) Should this Gateway Proposal be ultimately approved by the Department of Planning and then Council finally approve the Proposal, that recommendation (f) apply to a subsequent Development application; and (f) Council, as part of the assessment of or for any future Development Application for further subdivision	environmental management.

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OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 11 JUNE 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
					on the subject land and Lake Wyangan catchment, commission an independent, suitably qualified consultant to evaluate the impact of stormwater and sewage discharge from the development.	
23 October 2018	CL01 – Planning Proposal 2/2018 Lot 641 DP 751743, 161 Remembrance Drive, Griffith	CLPC	62829	18/333	RESOLVED on the motion of Councillors Simon Croce and Eddy Mardon that: (a) Council endorse Planning Proposal 2/2018 set out in Attachment A of the report that seeks amendment to Griffith Local Environmental Plan 2014 to include an additional permitted use on Lot 641 DP 751743; and (b) Council give delegated authority to the Director Sustainable Development to submit the Planning Proposal to the Department of Planning and Environment to seek a Gateway Determination; and (c) Should Gateway approval be granted by the Department of Planning & Environment the Planning Proposal be placed on public exhibition for community consultation, and where identified consult with any relevant public authority; and (d) If any submissions are received, Council considers such before the	19/11/2018: Planning proposal has been forwarded to Department for consideration. 20/03/2019: Submission period ended 15 March 2019. No submissions received. DPE to be advised and matter to be sent to Parliamentary Council.

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OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 11 JUNE 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
					proposal is re-submitted to the Department of Planning and Environment for consideration and final assessment.	
9 October 2018	CL01 – Planning Proposal 3/2018 Lot 2 DP 1098689, 8 Pedley Road, Hanwood	CLPC	61912	18/320	RESOLVED on the motion of Councillors Mike Neville and Simon Croce that: (a) Council endorse Planning Proposal 3/2018 set out in Attachment (a) that seeks amendment to Griffith Local Environmental Plan 2014 to include an additional permitted use on Lot 2 DP1098689; and (b) Council give delegated authority to the Director Sustainable Development to submit the Planning Proposal to the Department of Planning and Environment to seek a Gateway Determination; and (c) Should Gateway approval be granted by the Department of Planning & Environment the Planning Proposal be placed on public exhibition for community consultation, and where identified consult with any relevant public authority; and (d) If any submissions are received, Council considers such before the proposal is re-submitted to the Department of Planning and	20/03/2019: Submission period ended on 15 March 2019. One submission to be review. Still waiting for response from NSW RMS. 20/05/2019: Report to go to Council regarding submission received and progressing the planning proposal.

OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 11 JUNE 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
					Environment for consideration and final assessment.	
25 September 2018	Notice of Motion – Roadway Clean Up Policy for Community Groups	DIO	61317	18/312	RESOLVED on the motion of Councillors Doug Curran and Mike Neville that Council staff investigate and formulate a policy that seeks to allow community groups to perform ongoing clean-up duties to selected and agreed sections of the Griffith City Council road network. That this policy would receive some priority in line with the current review of entrance strategies in order for any interested groups to begin cleaning up their areas early in 2019.	15/10/2018: Staff are researching programs in place in other government areas and will be reporting back to Council on 11 December 2018. 14/01/2019: Reported to Council on 11 December 2019. Fiona de Wit contacted Yenda Progress Association in December 2018. 6/5/2019: Program to commence with Yenda Rotary in June or July 2019.
12 June 2018	CC01 – Expression of Interest - Purchase Lake Wyangan Properties	GM	56904	18/192	RESOLVED on the motion of Councillors Mike Neville and Christine Stead that: (a) Council not accept the offer to purchase 2 Smeeth Road and 77 McCarthy Road, Lake Wyangan as described in this report. (b) Council progress discussions with relevant stakeholders to explore opportunities for a mix of housing offerings in Griffith.	2/07/2018: Letter written to proponent advising not accept offer. Council convening meeting with interested stakeholders Wednesday 4 July 2018 to discuss innovative housing proposal. 16/07/2018: Stakeholders' meeting was held on 4 July 2018. Application to State Government being

OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 11 JUNE 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
					(c) A further report be prepared for Council consideration as discussions progress.	prepared to support development of the land. 17/09/2018: Awaiting feedback from Premier and Cabinet. 2/10/2018: Comments requested from Department of Planning further comment Department Premier briefed Thursday 27 September 2018. 19/03/2019: Department of Premier and Cabinet not responding to EOI lodged October 2018. Report to Council Meeting 23 April 2019 recommending next steps. 15/04/2019: Further Workshop to be held 21 May 2019.